

UNIT - III: Copyrights

1. Meaning of Copyright

- Copyright is a legal right given to the creator of original work.
- It protects creative works from unauthorized copying or usage.

2. Subject Matter of Copyright

Copyright protects:

- Literary works (books, articles, software)
- Dramatic works (plays, scripts)
- Musical works (songs, music compositions)
- Artistic works (paintings, drawings, photos)
- Cinematograph films (movies)
- Sound recordings (audio recordings)

3. Registration Procedure

- Application is filed with the Copyright Office.
- Required documents and fees are submitted.
- After verification, registration certificate is issued.

4. Term of Protection

- Generally valid for 60 years.
- Duration differs based on the type of work.

5. Ownership of Copyright

- Usually owned by the creator.
- In company work, employer may become the owner.

6. Assignment and License

- Assignment means transferring ownership rights.
- License means giving permission to use the work for limited purposes.

7. Infringement

- Unauthorized copying or use of copyrighted work is called infringement.

8. Remedies and Penalties

- Court can stop illegal usage.
- Compensation and penalties may be imposed.
- Serious violations may lead to imprisonment.

9. Related Rights

- Rights given to performers, producers, and broadcasters.

10. Difference Between Copyright and Related Rights

- Copyright protects creators.
- Related rights protect performers and broadcasting organizations.

UNIT - IV: Trademarks

1. Meaning of Trademark

- Trademark is a symbol or sign used to identify products or services.

2. Types of Trademarks

- Brand names
- Logos
- Signatures
- Symbols
- Service marks
- Certification marks
- Well-known marks

3. Non-Registrable Trademarks

- Generic names cannot be registered.
- Offensive or misleading marks are not allowed.

4. Registration Procedure

- Application is filed in Trademark Registry.
- Examination and publication are done.
- If no objection, registration certificate is issued.

5. Rights of Trademark Holder

- Exclusive right to use the trademark.
- Can stop others from using similar marks.

6. Assignment and Licensing

- Trademark owner can transfer or license the mark to others.

7. Infringement

- Unauthorized use of similar trademarks causes infringement.

8. Remedies and Penalties

- Court may stop misuse.
- Compensation and penalties can be imposed.

9. Trademark Registry and Appellate Board

- Registry manages trademark registration.
- Appellate board handles disputes and appeals.

UNIT - V: Design

1. Meaning of Design

- Design refers to the appearance, shape, or pattern of a product.

2. Novel and Original Design

- Design must be new and unique.

3. Registration Procedure

- Application is submitted with design details.
- After examination, registration is granted.

4. Effect of Registration

- Owner gets exclusive rights over the design.

5. Term of Protection

- Protection is generally for 10 years and can be extended.

Geographical Indication (GI)

1. Meaning of GI

- GI identifies products belonging to a specific geographical area.

Examples:

- Darjeeling Tea
- Pochampally Sarees

2. Difference Between GI and Trademark

- GI represents a region.
- Trademark represents a company or business.

3. Registration Procedure

- Producers association files the application.
- GI Registry verifies and grants registration.

4. Effect of Registration

- Protects regional products from misuse.

5. Term of Protection

- Valid for 10 years and renewable.

Plant Variety Protection

1. Meaning

- Protects new plant varieties developed by breeders.

2. Benefit Sharing

- Farmers and breeders share benefits from new varieties.

3. Farmers' Rights

- Farmers can save and use seeds for cultivation.

4. Registration Procedure

- New plant variety is tested and registered.

5. Effect and Term of Protection

- Gives exclusive rights to breeders for a fixed period.

Layout Design Protection

1. Meaning

- Protects the layout design of semiconductor integrated circuits.

2. Registration Procedure

- Application is submitted with layout details.

3. Effect of Registration

- Prevents copying of electronic chip designs.

4. Term of Protection

- Protection is given for a specified number of years.

Current Contour in IPR

1. India's National IP Policy, 2016

- Introduced to strengthen IPR awareness and innovation.
- Encourages creativity and entrepreneurship.

2. Government Steps to Promote IPR

- Awareness programs
- Startup support
- Fast-track patent examination
- Online registration systems

3. Government Schemes in IPR

- Startup India Scheme
- MSME support for patents
- Intellectual Property Awareness programs

4. Career Opportunities in IPR

- Patent Analyst
- Trademark Attorney
- IP Consultant
- Copyright Expert
- Legal Advisor

5. IPR in Current Scenario

- Important in software, AI, biotechnology, media, and startups.
- Helps protect innovations and business identity.